

**Superior Court of the State of California
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32
JUDGE LEE L. GABRIEL, Dept. C32**

Date: May 19, 2026

APPEARANCES: Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1.	WEI VS. SMART & FINAL, LLC 2024-01450331	1. MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES 2. MOTION TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES 3. MOTION TO COMPEL PRODUCTION 4. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS Defendant Smart & Final, LLC's Motions to Compel Answers to Requests for Production of Documents, Form Interrogatories, Special Interrogatories, and to Deem Admitted Requests for Admission (ROAs 39, 43, 47, and 51) are GRANTED. Per the declaration of defense counsel, Defendant served the subject discovery on 8/21/25, but as of 12/4/25 Defendant had not received any response from Plaintiff. Plaintiff shall serve verified responses, without objections, to Defendant's Requests for Production of Documents, Form Interrogatories, and Special Interrogatories (Set One) within 20 days of service of notice of this order. (Code Civ. Proc. §§ 2031.300, 2030.290.) Plaintiff is deemed to have waived objections and admitted Defendant's Requests for Admission (Set One). (Code Civ. Proc. § 2033.280.) Defendant's request for sanctions is granted in the amount of \$470 per motion, reflecting two hours of counsel's time plus the \$60 filing fee, for a total of \$1,880.00 for the four motions, payable within 30 days of service of notice of this order.
2.	TC BROTHERS ENTERPRISES, INC. VS. BOWLERO CORPORATION 2023-01313029	MOTION TO COMPEL ANSWERS TO FORM INTERROGATORIES Defendant AMF Bowlero Centers, Inc.'s Motion to Compel Responses to Form Interrogatories, set one, is DENIED as moot. Plaintiff served responses to Defendant's Form Interrogatories, set one, on December 8, 2025. (Reed Decl., ¶ 9.) Thus, the Motion is moot. Defendant's request for sanctions is DENIED. Plaintiff acted with substantial justification in submitting responses in a timely manner after counsel had a personal emergency.

3.	METOYER VS. EXCEL ACADEMY CHARTER SCHOOLS 2024-01430946	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) The Motion to Compel Plaintiff’s Deposition Testimony by Defendant Excel Academy Charter Schools is GRANTED. Defendant moves to compel Plaintiff to respond to a deposition question in which she was asked to identify her current employer. (Defendant argues, “Dr. Metoyer attempted to prevent disclosure of this information by agreeing not to pursue lost wages as damages, but then placed that information back in controversy by tying her alleged emotional distress to disclosing her employment history when applying for jobs. Thus, the lion’s share of her alleged emotional distress damages are directly tied to her current employer.” (Motion, 4:5-9.) Plaintiff opposes the motion on the grounds that (1) the parties entered a stipulation on the record that Plaintiff would not seek economic damages in exchange for Defendant not questioning her about subsequent employment, (2) the identify of Plaintiff’s current employer is not relevant, and (3) Plaintiff’s right to privacy protects this information. In reply, Defendant argues that while the parties agreed not to examine Plaintiff’s current employment related to economic damages, Plaintiff later raised the issue of emotional distress involving her current employment in relation to her claims against Defendant, her prior employer. Defendant also asserts that it should be able to determine whether Plaintiff’s claim that she did not lie about her past termination when seeking new employment is credible. At her deposition, Plaintiff testified she was still experiencing emotional distress, including when “something comes up about my work history or questions” such as “[i]n seeking employment” with her current employer. (Plaintiff Depo., 192:3-198:4.) The Defendant need only show that the information sought is reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) And while Plaintiff has privacy rights related to her employment information, she has placed issues related to her current employment at issue by stating that she has suffered emotional distress in relation to applying for new positions after Defendant’s termination. (Plaintiff Depo., 191:18-198:7; see <i>John B. v. Superior Court</i> (2006) 38 Cal.4th 1177, 1199 [“privacy interests may have to give way to (the) opponent’s right to a fair trial”]; <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 842 [“a party who chooses to allege that he has mental and emotional difficulties can hardly deny his mental state is in controversy”].) At this time, the Court need not decide whether further discovery into Plaintiff’s current employment will be permitted. The parties
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		are encouraged to work cooperatively to resolve any anticipated issues regarding future discovery into this issue. Defendant’s request for sanctions is denied because both sides acted with substantial justification based on Plaintiff’s assertion of constitutional privacy rights. (Code Civ. Proc. § 2025.480(j).)
4.	TOOLEY VS. RIVIAN LLC 2025-01519651	MOTION TO COMPEL ARBITRATION Defendant Rivian LLC’s unopposed motion to compel arbitration and to stay the action is GRANTED. Defendant contends Plaintiff’s claims are subject to arbitration pursuant to a “Rivian Motor Vehicle Agreement.” Plaintiffs have not filed an opposition. Legal standard The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (<i>Rosenthal</i>)). “[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence” and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendant seeks to compel arbitration under the FAA. <u>Analysis</u> <u>The Subject Arbitration Agreement</u> On 4/26/24, Plaintiffs leased a new 2024 Rivian Model R1S (the Subject Vehicle) from Defendant. (Orquiola Decl., ¶ 3, Ex. A.) To lease the Subject Vehicle, Plaintiffs executed a “Rivian Motor Vehicle Agreement” (RMVA). (Orquiola Decl., ¶ 4, Ex. B) The RMVA states on page 1, in part, “THIS AGREEMENT REQUIRES THE USE OF ARBITRATION ON AN INDIVIDUAL BASIS TO RESOLVE DISPUTES, RATHER THAN JURY TRIALS OR CLASS ACTIONS. PLEASE

REFER TO SECTION 20 FOR ADDITIONAL DETAILS.”
(Orquiola Decl., Ex. B at p. 1 [emphasis in original].)

The RMVA further provides in Section 20:

“Binding Arbitration. To the fullest extent permitted by applicable law and except for small claims or if you choose to opt-out as provided below, you and Rivian agree to resolve any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or our relationship, including advertising and other communications between you and Rivian, Rivian products or services, and as applicable, your credit application, or the purchase or condition of the Vehicle (a ‘Dispute’) by binding arbitration conducted by the American Arbitration Association (‘AAA’) in accordance with the AAA Consumer Arbitration Rules, unless you and we agree otherwise.” (Orquiola Decl., Ex. B at p. 7.)

It further states, **“You and we understand that we are both waiving our rights to go to court (other than small claims court, as provided below), to present our claims to a jury and to have claims resolved by a jury trial, and also that judicial appeal rights, if any, are more limited in arbitration than they would be in court.”** (Orquiola Decl., Ex. B at p. 7 [emphasis in original].)

Whether an Agreement to Arbitrate Exists

When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the controversy (§ 1281.2)” and the provisions of the arbitration agreement must be set forth verbatim or a copy of the agreement must be attached to the petition and incorporated by reference. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218 [citations omitted].)

“If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, [disagreed with by *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, on a different point.])

Defendant attached a copy of the RMVA as Exhibit B to the Orquiola Declaration reflecting Plaintiffs’ signatures.

Given the above and no opposition from Plaintiffs, the Court finds an agreement to arbitrate exists.

Whether the RMVA Covers Plaintiffs’ Claims

		As set forth above, the RMVA purports to cover “any claims, demands, disagreements, or disputes between us whether based in contract, tort, statute or otherwise arising from or related to this Agreement or our relationship, including advertising and other communications between you and Rivian, Rivian products or services, and as applicable, your credit application, or the purchase or condition of the Vehicle” (Orquiola Decl., Ex. B at p. 7.) This language covers Plaintiffs’ claims which relate to the warranties accompanying Plaintiffs’ leased Rivian. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) The Court finds the RMVA covers Plaintiffs’ claims. <u>Enforceability of the Agreement</u> Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal</i>, 14 Cal.4th at p. 413.) Plaintiffs have not opposed the motion and have therefore not raised any defenses as to enforceability. Accordingly, the Court GRANTS Defendant Rivian LLC’s motion to compel arbitration. The Court STAYS the action pending the completion of arbitration. The Court SETS a Status Conference re: Status of Arbitration for 11/20/26 at 9:00 a.m., in Department C32.
5.	LITZEN VS. ALBERTSONS COMPANIES, INC. 2024-01413486	MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST FOR PLAINTIFF The motion for Manouchag Litzen to be appointed as successor in interest to plaintiff and decedent Charles Litzen is GRANTED. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.)

Code of Civil Procedure section 377.32 provides the procedural requirements for a successor in interest to substitute in as plaintiff. Specifically, section 377.32 provides:

“(a) The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

- (1) The decedent's name.
- (2) The date and place of the decedent's death.
- (3) No proceeding is now pending in California for administration of the decedent's estate.
- (4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.
- (5) Either of the following, as appropriate, with facts in support thereof:

(A) The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding.

(B) The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.

(6) No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.

(7) The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

(b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.

(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.”

(Code Civ. Proc. § 377.32 (internal quotations omitted).)

Here, the Court continued the hearing on this motion from 4/21/26 to allow Manouchag Litzen time to fully comply with the statutory requirements by filing a supplemental declaration stating the place of the decedent's death and a copy of the decedent's death certificate. (See ROA No. 56.) Manouchag Litzen timely did so on 4/23/26. (See ROA No. 58.)

		The Court finds Manouchag Litzen, the surviving spouse of plaintiff Charles Litzen (“Decedent”), has complied with the requirements set forth in Code of Civil Procedure Section 377.32. Therefore, the motion is GRANTED.
6.	MARINERO VS. TRIANA 2022-01298697	MOTION TO SUBSTITUTE PLAINTIFF The motion for Jose Chicas, as Successor Trustee of The Arcadia Marinero Family Trust dated April 27, 2021, to be appointed as successor in interest to plaintiff and decedent Arcadia Marinero is GRANTED. “A pending action or proceeding does not abate by the death of a party if the cause of action survives.” (Code Civ. Proc. §377.21.) “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc. §377.31.) Code of Civil Procedure section 377.32 provides the procedural requirements for a successor in interest to substitute in as plaintiff. Specifically, section 377.32 provides: “(a) The person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following: (1) The decedent's name. (2) The date and place of the decedent’s death. (3) No proceeding is now pending in California for administration of the decedent's estate. (4) If the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest. (5) Either of the following, as appropriate, with facts in support thereof: (A) The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding. (B) The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding.

		(6) No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding. (7) The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct. (b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact. (c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.” (Code Civ. Proc. § 377.32 (internal quotations omitted).) Here, on 4/10/25, plaintiff Arcadia Marinero (“Plaintiff”) filed a Notice of Settlement (conditional). (ROA No. 83.) The following day, Plaintiff and defendant Miriam Triana (“Defendant”) settled via Settlement Agreement and Release of Claims. (Ex. 1.) Thereafter, on 9/11/25, Plaintiff passed away in El Salvador. (Chicas Decl., ¶ 2, Ex. 2.) Prior to her death, Plaintiff established The Arcadia Marinero Family Trust dated April 27, 2021. Pursuant to the Trust instrument, Jose Chicas was designated as Successor Trustee. (Chicas Decl., ¶ 1, Ex. 3.) To date, a Request for Dismissal has not been filed and an OSC re Dismissal is set for 6/29/26. (See ROA 96.) Therefore, the action remains pending. In the motion, Jose Chicas alleges Defendant has not complied with the terms of the Settlement Agreement. Plaintiff’s counsel previously advised the Court that they intended to file a motion to enforce the Settlement Agreement. (See ROA 96.) The Court finds Jose Chicas has submitted a declaration that complies with the requirements set forth in Code of Civil Procedure Section 377.32. Therefore, the motion is GRANTED.
7.	ALCANTAR VS. JOHNSON 2025-01482892	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff’s Motion for Leave to Amend Complaint is GRANTED. Plaintiff seeks leave to amend the complaint to allege facts related to the alleged liability of Lordon Enterprises, Inc., which was identified as Doe 2 in Plaintiff’s fictitious name amendment filed on 8/11/25. Plaintiff seeks to allege that Lordon Enterprises is liable as a property management company responsible for maintenance work at the property where Plaintiff alleges he was injured by a faulty ladder while performing roofing work. (Proposed Amended Complaint, ¶¶ 11-20.)

		The motion is unopposed. The motion and supporting declaration comply with California Rules of Court, Rule 3.1324. The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473, 576.) “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (<i>Sullivan v. City of Sacramento</i> (1987) 190 Cal.App.3d 1070, 1081.) Here, trial is set for 4/9/27 and there is no showing of prejudice arising from the proposed amendment. Therefore, the motion is granted. Plaintiff shall file and serve the amended complaint within 20 days of this order.
8.	HALBERDA VS. HIDDEN CANYON ESTATES HOMEOWNERS ASSOCIATION 2022-01299111	1. DEMURRER TO AMENDED COMPLAINT Defendants John Alevizos and Georgia Alevizos’ Demurrer is SUSTAINED in part as to 2nd cause of action without leave to amend the OVERRULED in part as to the 1st cause of action. The Alevizoses’ and Halberdas’ requests for judicial notice are granted as records of this court. Additionally, the Court takes judicial notice, sua sponte, of the signed stipulation dismissing the prior lawsuit with prejudice. (ROA 64, Case No. 30-2020-01145204-CU-BC-CJC.) <u>1st Cause of Action – Breach of Equitable Servitudes</u> “The prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding.” (<i>Boeken v. Philip Morris USA, Inc.</i> (2010) 48 Cal.4th 788, 797, [cleaned up].) The Halberdas first claim they lacked privity with the HOA in the prior action because their claims in this case are in conflict with the prior settlement agreed upon. Privity requires the party in the prior proceeding represented the same legal right. (<i>Zaragosa v. Craven</i> (1949) 33 Cal.2d 315, 318.) The claim in the prior proceeding was whether the Alevizoses could maintain a fence on their property. (RJN, Ex. A.) The Sub-HOA was defending the prior proceeding to enforce the CC&Rs. (RJN, Ex. A.) Thus, part of the Halberdas’ claims in the first cause of action are precluded. “The Halberdas seek preliminary and permanent injunctive relief compelling the Defendants to rescind their settlement agreement ... and further compelling Defendants to remove any and all landscaping, fencing

and other “Improvements”” (4AC, ¶ 37.) The second part of the sought injunctive relief was the exact issue previously determined in the prior proceeding.

Further, the first part of the injunctive relief regarding whether the Sub-HOA had the authority to enter into the settlement agreement which the Halberdas claim is in direct violation of the CC&R is also precluded. This situation presents a similar situation to *Duffy v. Superior Court* (1992) 3 Cal.App.4th 425. In *Duffy*, a homeowners association filed a complaint against a homeowner who was attempting to build an improvement on their property as well as the neighbors to the homeowners. (Id. at 427.) The association argued the neighbors were proper parties because they may sue the association if they were unhappy with the outcome of the case. (Id. at 432.)

However, in ruling the neighbors were not proper parties to the case, the court reasoned:

If, after this litigation is over, the Duffeys and the Mehrenses are unhappy because the court has rejected their interpretation of the CC & Rs on the merits, they will have only themselves to blame. [Code of Civil Procedure, section 5975, previously Civil Code, section 1354,] gives them the right to join the litigation to enforce the CC & Rs if they so desire. If they are at all concerned that the homeowner association will not vigorously press their interpretation of the CC & Rs to the trial court, now is the time for them to exercise their rights under section [5975] and do so. [¶] The association, for its part, need only make a good faith effort to obtain a judicial declaration on the merits of the dispute. Code of Civil Procedure section [5980, previously section 374,] gives an association standing to pursue “matters pertaining” to the “[e]nforcement of the governing documents” of a “common interest development.” Enforcement is impossible when governing documents are unclear as applied in a given context. Interpretation of governing documents is undoubtedly a “matter pertaining” to their enforcement. Accordingly, we conclude section [5980] authorizes homeowner associations to file declaratory relief actions such as this one where there is a need for an authoritative interpretation of governing documents. [¶] At the same time, however, section [5980] specifically relieves homeowner associations from the need to join “the individual owners of the common interest development.” When read in conjunction with [sic] section [5975], an important implication emerges from this aspect of the statute: if there is a good faith dispute concerning the interpretation of the CC & Rs, a homeowner association need not vigorously advocate any particular interpretation—individual owners can do that if they want to under section [5975]. As long as the “matters” relate to the enforcement of the CC & Rs (which would entail joining the parties against whom they are to be enforced), the association has standing to litigate them without joining the neighboring owners with their various viewpoints. If those owners want to press their own interpretations, section [5975]

allows them to jump into the fray directly. Otherwise, they are free to stay on the sidelines.

(Duffy, supra, 3 Cal.App.4th 425, 432-433.) The Halberdas are claiming the opposite, that they may “stay on the sidelines” in the prior proceeding and then challenge the outcome once it has concluded. Thus, creating the exact scenario anticipated and prohibited in Duffy. As is the case here, an association can be left with conflicting obligations if multiple homeowners may sue it in a piecemeal fashion. Therefore, the Halberdas’ claim that they lack privity with the Sub-HOA in the prior proceeding is without merit.

Additionally, the lawsuits involve the same primary rights, whether the fence is permitted under the CC&Rs. Under both lawsuits, the primary issue is whether the fence violates the CC&Rs. The Halberdas claim the CC&Rs do not permit the Sub-HOA to allow a variance to permit improvements outside of the building envelope. If the Halberdas were worried the Sub-HOA was not interpreting the CC&Rs correctly, they could have litigated their interpretation in the prior proceeding. They chose not to. Thus, their claim rests on the primary right that the fence violates the CC&Rs. Therefore, the lawsuits involve the same primary rights.

Finally, a dismissal with prejudice “is the equivalent of a final judgment on the merits (Boeken, supra, 48 Cal.4th 788, 804.) The prior proceeding was dismissed with prejudice. (ROA 64, Case No. 30-2020-01145204-CU-BC-CJC.)

The Alevizoses would be entitled to join this lawsuit under Code of Civil Procedure, section 5975, just as the Halberdas were entitled to join the prior lawsuit to advocate for their interpretation of the CC&Rs, namely whether the fence was permitted under the CC&Rs. However, they are not currently a party to the first cause of action. Therefore, they may not object to the pleading. (Code Civ. Proc., § 430.10.)

Allegations Regarding Civil Code § 5930

The Court granted limited leave to amend the TAC and instructed Plaintiffs to plead sufficient facts to support their claim the complaint fall within the exception to Code of Civil Procedure, section 5930. Plaintiffs added paragraph 46 stating:

Upon information and belief, the Halberdas have been damaged though diminution of their property’s value and costs associated with curing the Defendants’ unlawful conduct. Specifically, the presence of the fenced in adjoining orchard have impaired previously unobstructed views from the Halberdas’ property as well as increasing the landslide and fire risk to the Halberdas’ property. The precise diminution in the Halberdas’ property value is to be proven at trial through expert valuation testimony, but, upon information and belief, exceeds \$25,000. Accordingly, the

Halberdas have been damaged in an amount to be proven at trial from the Defendants' blatant violation of the CC&Rs.

The allegation conflicts with paragraph 44 which alleges "[t]he future losses associated with Alevizos' refusal to honor the CC&Rs and Rules, as well as the HOA's final decision alleged hereinabove, will be difficult if not impossible to ascertain." Plaintiffs do not explain how they have now determined the damages are ascertainable and over \$25,000.

Under the sham pleading doctrine, the trial court may disregard amendments that omit harmful allegations in the original complaint or add allegations inconsistent with it. (State of California ex rel. Metz v. CCC Information Services, Inc. (2007) 149 Cal.App.4th 402, 412.)

"If a party files an amended complaint and attempts to avoid the defects of the original complaint by either omitting facts which made the previous complaint defective or by adding facts inconsistent with those of previous pleadings, the court may take judicial notice of the prior pleadings and may disregard any inconsistent allegations. [Citations.]" (Colapinto v. County of Riverside (1991) 230 Cal.App.3d 147, 151-152.)

"The sham pleading doctrine is not 'intended to prevent honest complainants from correcting erroneous allegations ... or to prevent correction of ambiguous facts. [Citation.] Instead, it is intended to enable courts ' "to prevent an abuse of process." [Citations.]' Plaintiffs therefore may avoid the effect of the sham pleading doctrine by alleging an explanation for the conflicts between the pleadings. [Citations.] (Larson v. UHS of Rancho Springs, Inc. (2014) 230 Cal.App.3d 336, 343.)

Here, Plaintiff alleges the damages caused by the obstructed view are both "difficult if not impossible to ascertain," thus warranting injunctive relief, and, based on information and belief, exceeding \$25,000. Plaintiffs have not alleged an explanation for this conflict, thus, it is not evident paragraph 46 is a correction to an erroneous allegation or an ambiguous fact. Therefore, the newly added paragraph 46 is a sham allegation.

Accordingly, Plaintiffs have failed to adequately allege their claim falls within the exception to Civil Code § 5930. Thus, the Alevizoses' demurrer to the 2nd cause of action is sustained without leave to amend. (See [Le Mere v. Los Angeles Unified School Dist. (2019) 35 Cal.App.5th 237, 245 [unreasonable delay sufficient grounds for denying leave to amend].)

		2. MOTION TO STRIKE PORTIONS OF COMPLAINT Defendants John Alevizos and Georgia Alevizos’ Motion to Strike is DENIED. The Alevizoses’ requests for judicial notice are granted as records of this court. The Alevizoses do not have standing to challenge the first cause of action because the cause of action does not name them as defendants. (Code Civ. Proc., § 430.10.) The Alevizoses requests to strike paragraphs 7, 28, 29, and 46 of the 4AC; paragraphs 1, 2, and 4-7 of the prayer for relief; and all references to litigation expenses, attorney’s fees, expert fees, and costs are denied as moot in light of sustaining the demurrer as to the 2nd cause of action without leave to amend. The Alevizoses are no longer parties to the lawsuit because there are no causes of action asserted against them.
9.	HAUNGS VS. NB TECH ACQUISITIONS CORP. 2025-01503830	1. DEMURRER TO AMENDED CROSS-COMPLAINT Plaintiffs/Cross-defendants Jeff Haungs and Matthew Steffens’ demurrer to the first, second, and third causes of action in Defendants/Cross-complainants NB Tech Acquisitions Corp. and 041 LLC’s Cross-complaint is OVERRULED in part and SUSTAINED in part with leave to amend. <u>First and Second Causes of Action for Breach of Contract</u> Defendants/Cross-complainants’ first and second causes of action allege breach of contract against Plaintiff/Cross-defendant Jeff Haungs and Plaintiff/Cross-defendant Matthew Steffens, respectively. “To state a cause of action for breach of contract, a party must plead the existence of a contract, his or her performance of the contract or excuse for nonperformance, the defendant’s breach and resulting damage.” (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307 [citation omitted].) “If the action is based on alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written agreement must be attached and incorporated by reference.” (<i>Ibid.</i>) “In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language.” (<i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 198-199 [citation omitted].) Plaintiffs/Cross-defendants demur on the grounds Defendants/Cross-complainants failed to attach a copy of the alleged contracts to the

cross-complaint or state the essential terms of the contracts and the specific provisions breached.

Defendants/Cross-complainants allege they entered into separate agreements with Jeff Haungs and Matthew Steffens. With respect to both agreements, Defendants/Cross-complainants checked the boxes on the form cross-complaint stating, “The essential terms of the agreement . . . are as follows.” (Cross-Comp. at pp. 3 and 5.) In place of setting forth the essential terms, Defendants/Cross-complainants state, “A copy of the agreement is attached as Exhibit 1 [and Exhibit 2] to the Complaint herein.” (*Id.*)

As Defendants/Cross-complainants neither attach the agreements nor set forth their essential terms, the Court finds Defendants/Cross-complainants fail to state causes of action for breach of contract.

The Court SUSTAINS the demurrer to the first and second causes of action with 20 days leave to amend.

Third Cause of Action for Fraud

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citation omitted].)

Fraud must be pleaded with specificity. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 [citation omitted].)

Defendants/Cross-complainants’ cross-complaint includes language from the form cross-complaint itself together with additional allegations from Defendants/Cross-complainants.

Defendants/Cross-complainants allege with respect to the alleged misrepresentations:

- To induce Cross-complainants to hire them as a team Cross-defendants represented that they would deliver “white glove” service to manage, develop and grow Cross-complainants’ e-commerce business by bringing in known product suppliers, by using their personal connections in the U.S. intelligence community to bring in the Department of Defense contracts, and by using their business connections at Amazon, Ebay and Home Depot to obtain favors and preferential treatment for Cross-complainants.
- These representations were in fact false and the truth was Cross-defendants lacked the management skills to deliver even basic internal corporate functions, chose to ignore directions given by Cross-complainants’ Chief Executive Officer, and made no effort to bring in new product

suppliers, Department of Defense contracts or to reach out to Amazon, Ebay and Home Depot for favors and preferential treatment for Cross-complainants.

- When Cross-defendants made the representations they knew they were false and made the representations with the intent to defraud and induce Cross-complainants to enter into employment agreements.

Defendants/Cross-complainants allege with respect to the alleged concealment:

- Cross-defendants concealed Steffens was addicted to the use of cocaine, which if known to Cross-complainants would have disqualified him as a potential employee.
- Cross-defendants concealed facts they were bound to disclose and did so with the intent to defraud and induce Cross-complainants to enter into employment agreements.

Defendants/Cross-complainants further allege that in justifiable reliance on Cross-defendants' conduct they entered into employment agreements providing for substantial signing bonuses and generous salaries.

Defendants/Cross-complainants allege because of their reliance on Cross-defendants' conduct they have been damaged by the loss of existing and prospective customer revenue and significant delay in the implementation of their business plan.

These allegations are sufficient at the pleading stage.

The Court OVERRULES the demurrer to third cause of action.

2. MOTION TO STRIKE PORTIONS OF CROSS-COMPLAINT

Plaintiffs/Cross-defendants Jeff Haungs and Matthew Steffens' motion to strike portions of Defendants/Cross-complainants NB Tech Acquisitions Corp. and 041 LLC's Cross-complaint is DENIED in part and GRANTED in part with leave to amend.

Plaintiffs/Cross-defendants move to strike portions of the Cross-complaint seeking exemplary damages and attorney's fees.

Punitive Damages

To support a demand for punitive damages, a plaintiff must allege facts demonstrating oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166; Civ. Code, § 3294, subd. (a).) "A fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is

		sufficient.” (<i>Stevens v. Superior Court</i> (1986) 180 Cal.App.3d 605, 610-611 [citations omitted.]) As discussed above, Defendants/Cross-complainants have sufficiently alleged a cause of action for fraud. The Court DENIES Plaintiffs/Cross-defendants’ motion to strike portions of the Cross-complaint seeking exemplary damages. <u>Attorney’s Fees</u> Defendants/Cross-complainants have not sufficiently alleged any contract, statute or law which allows for the recovery of attorney’s fees. The Court GRANTS Plaintiffs/Cross-defendants’ motion to strike portions of the Cross-complaint seeking attorney’s fees with 20 days leave to amend.
10.	HERNANDEZ VS. TOYOTA MOTOR SALES, U.S.A., INC. 2025-01498893	1. DEMURRER TO COMPLAINT Defendant Toyota Motor Sales, U.S.A., Inc. (“Toyota”) demurrer to the Sixth Cause of Action for Fraudulent Inducement – Concealment in the Complaint filed by plaintiff Isaac Pedrosa Hernandez is OVERRULED. <u>Sixth Cause of Action for Fraudulent Inducement – Concealment:</u> Toyota contends the sixth cause of action (1) fails to plead fraud with the requisite specificity; (2) fails to allege a transactional relationship between Toyota and Plaintiff giving rise to a duty to disclose; and (3) is barred by the economic loss rule. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (<i>Rattagan v. Uber Techs., Inc.</i> (2024) 17 Cal.5th 1, 40 (<i>Rattagan</i>).) Fraud must be pleaded with specificity rather than with general and conclusory allegations.” (<i>Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248) (cleaned up).) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645 (cleaned up).) First, Toyota argues Plaintiffs fail to plead fraud with the requisite specificity. In <i>Alfaro v. Community Housing Improvement System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384, the court addressed the level of specificity required in cases involving

nondisclosure. The *Alfaro* court stated that “[o]ne of the purposes of the specificity requirement is notice to the defendant, to furnish the defendant with certain definite charges which can be intelligently met. Less specificity should be required of fraud claims when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy, [e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party....” (*Ibid.* (cleaned up).) The *Alfaro* court specifically found the pleading standard required for fraudulent concealment did not require the plaintiffs therein “to allege each occasion on which an agent of either defendant could have disclosed the restrictive deed” as “[s]urely defendants have records of their dealings with the plaintiffs.” (*Id.* at p. 1384-1385.)

The details concerning facts regarding Toyota’s knowledge of the defects and the identities of those at Toyota who allegedly concealed material facts are, by nature, those of which Toyota must necessarily possess full information. These facts lie more in the knowledge of Toyota. Thus, the allegations in the Complaint are sufficiently specific.

Second, Toyota argues Plaintiff fails to plead facts to allege a duty to disclose. “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.” (*Rattagan, supra*, 17 Cal.5th at p. 40-41 (cleaned up).)

Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 addressed the issue of a transactional relationship and found a car buyer need not allege a contract with the manufacturer in order to allege a duty to disclose stating:

“Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a

more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiff alleges that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects."

(*Dhital, supra*, 84 Cal.App.5th at p. 844.) Here, the Complaint alleges Toyota manufactured and/or distributed the Subject Vehicle and Plaintiff entered into a warranty contract with Toyota regarding the Subject Vehicle. (Complaint, ¶7.) However, unlike *Dhital*, the Complaint does not allege Plaintiff purchased the Subject Vehicle from a Toyota dealership or that Toyota's authorized dealerships are its agents for purposes of sale of Toyota vehicles to its consumers. As a result, the allegations in the Complaint are insufficient under *Dhital* to show a transaction between Plaintiff and Toyota sufficient to impose a duty to disclose.

However, under *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337 "duty of disclosure ... may exist when one *party to a transaction* has sole knowledge or access to material facts and knows that such facts are not known to ... *the other party*." Here, Plaintiff adequately pleads Toyota's sole knowledge or access to facts and Toyota's failure to disclose those facts to Plaintiff—to whom it provided an express warranty. (Complaint, ¶¶57, 62, 72, & 75.)

Lastly, Toyota argues the economic loss rule precludes the fraudulent concealment claim. Under the economic loss rule in California, "where a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses." (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (cleaned up).)

The parties disagree as to whether the test set forth in *Rattagan* applies to the case at issue. The Court finds that *Dhital* is controlling and *Rattagan* is distinguishable.

In *Rattagan*, the Supreme Court concluded that "[u]nder California law, a plaintiff may assert a cause of action for fraudulent concealment based on *conduct occurring in the course of a contractual relationship* if the elements of the claim can be established independently of the parties' contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract." (*Rattagan, supra*, 17 Cal.5th at p. 45 (emphasis added).)

		In <i>Dhital</i>, the court ruled, “the economic loss rule does not cover such [fraudulent inducement] claims...For fraudulent inducement and the other existing exceptions listed in <i>Robinson</i>, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. In our view, that independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions that were agreed to.” (<i>Dhital, supra</i>, 84 Cal.App.5th at p. 841.) Applying <i>Dhital</i>, the economic loss rule does not bar Plaintiffs’ sixth cause of action for fraudulent inducement – concealment. Therefore, the demurrer to the sixth cause of action is OVERRULED. Moving Defendant to give notice. 2. MOTION TO STRIKE PORTIONS OF COMPLAINT Defendant Toyota Motor Sales, U.S.A., Inc.’s motion to strike the request for punitive damages in the Complaint filed by Plaintiff Isaac Pedrosa Hernandez is DENIED. Civil Code Section 3294, subdivision (a) states: “(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Civil Code Section 3294, subdivision (c)(3) states: “ ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” For the reasons discussed in the demurrer, the Complaint alleges sufficient allegations of Fraudulent Inducement – Concealment to withstand demurrer. Therefore, the Complaint sufficiently alleges fraud for purposes of Civil Code Section 3294, subdivision (c)(3). Moving Defendant to give notice.
11.	CINEMATIC CAPITAL CORP. VS. SAID 2023-01343920	1. MOTION FOR ISSUANCE OF ORDER SHOWING CAUSE RE: CONTEMPT Plaintiff’s Motion for OSC Re: Contempt and Sanctions against Abbey Sinowetski (ROA 297) is DENIED.

Plaintiff's Request for Judicial Notice in support of the Motion is GRANTED as records of this Court. (See Evid. Code § 452, subd. (d).)

Plaintiff's Request for Judicial Notice in support of Plaintiff's Response is GRANTED as to Exhibits 1-3, 5, 6, 9-11 as records of this Court and the federal court. (See Evid. Code § 452, subd. (d).) As to Exhibits 4, 7, and 8 is GRANTED only as evidence of their publication/existence, but not as to truth of their contents.

The Court finds Defendant's counsel, Yakup Sari, did not meet and confer in good faith as previously ordered. While the parties worked together to schedule a call (see Sari Decl. ¶ 6, Ex. A.), during the call Sari threatened defense counsel, Andrew Phan, and did not participate in any meaningful discourse regarding the case or resolution of these motions. (Phan Decl., ¶ 3.) Phan sent a follow-up email to Sari, but he did not respond. (Phan Decl., ¶ 3.)

Plaintiff asserts an OSC Re: Contempt and monetary sanctions are warranted because Defendant willfully failed to comply with the Court's 10/15/24 discovery and sanctions order.

"The essential facts to establish contempt for violation of a court order are '(1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.' [Citation]" (Moore v. Superior Court of Orange County (2020) 57 Cal.App.5th 441, 456.)

When a contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit must be presented to the court or judge of the facts constituting the contempt, or a statement of facts by the referees, arbitrators, or other judicial officers. (Code Civ. Proc., § 1211(a).) Once an affidavit has been filed, an ex parte order to show cause will be issued commanding the accused to appear before the court and answer the charges. (Code Civ. Proc., § 1212.) When the party charged with the contempt appears, the court or judge must proceed to investigate the charge. The court or judge must hear any answer which the accused may make, and may examine witnesses for or against him or her. The hearing may be adjourned from time to time if necessary. (Code Civ. Proc., § 1217.) The party charged with contempt is entitled to a hearing at which they may present any appropriate defenses, either by affidavits or witnesses, or both. (Hotaling v. Superior Court, City and County of San Francisco (1923) 191 Cal. 501.) After the evidence has been presented, the court must determine whether the person proceeded against is guilty of the contempt charged. (Code Civ. Proc., § 1218(a).)

The defenses that may be asserted in contempt proceeding include:

- (1) invalidity of the judgment or order violated;
- (2) no notice or knowledge of the judgment or order violated; (3) inability to comply with the judgment or order violated; and (4) good faith violation coupled with a willingness to comply with the

judgment or order at the time of the hearing. (8 Witkin, California Proc. (4th ed.), Enforcement of Judgment §§ 341 to 345.)

If the person charged with contempt is found guilty, they may be punished by a fine not exceeding \$1,000 or by imprisonment for not more than five days, or both. (Code Civ. Proc., § 1218(a).)

Sinowetski argues her prior discovery delays were not the product of bad faith or willful misconduct, but of her unrepresented status combined with serious, documented medical conditions that substantially impaired her ability to manage legal obligations. The Court imposed sanctions against Sinowetski on 10/15/24 (\$2,870) and 4/14/26 (\$5,220). The discovery requests underlying the 2024 sanction orders were served on 4/9/24. (ROA No. 122.) Sinowetski contends she was in pro per at the time and her failure to respond was not a deliberate decision to obstruct discovery but the result of ignorance of the process. Sinowetski also states she suffered serious medical conditions beginning in or around 2023 that worsened substantially in late summer of 2025 when discovery deadlines were pending. (Sinowetski Decl., ¶ 3; Sari Decl., ¶ 5.) She contends her symptoms made it extremely difficult to perform consistent work or manage complex responsibilities without assistance. (Sinowetski Decl., ¶ 5, Ex. A.)

Plaintiff contends Sinowetski's statement that she was unrepresented at the time of noncompliance is demonstrably false because she was represented by her prior attorney, Mark Warsaw, from 1/30/24 until 9/18/25. Plaintiff is correct. Sinowetski was represented by Mark Warsaw when she made her first appearance in this action on 1/30/24 (ROA No. 16 [Answer]) until 9/18/25 (ROA No. 315 [Substitution of Attorney].)

Plaintiff does not address Sinowetski's medical condition. Sinowetski's misrepresentation about her lack of legal representation undermines her credibility about her medical condition. However, without more, there is no evidence that Sinowetski, or her prior counsel, willfully disobeyed the prior orders or acted in bad faith. Further, upon retention of counsel, verified responses were promptly served to all outstanding discovery sets. The motions heard on 4/16/26 were deemed moot as to the underlying production, with only the sanction requests remaining. The Court previously acknowledged "Defendant's new counsel appears to be making diligent efforts to comply with Defendant's discovery obligations."

Sinowetski also argues she is financially unable to satisfy the sanctions. In her declaration Sinoweski states that she is unable to maintain employment due to her medical conditions, is financially dependent on Said for basic living expenses, and has no bank accounts with available funds, no liquid savings, no investment assets, and no independent financial resources. (Sinowetski Decl., ¶¶ 6, 10.) Sinowetski states she is not seeking to escape her obligations

entirely and is willing to comply to the extent reasonably possible given her present financial circumstances.

Plaintiff contends Sinowetski's LinkedIn account indicates she works in an insurance company. However, this is neither admissible evidence nor judicially noticeable.

Sinowetski has therefore established she lacks the ability to pay and her non-payment was not willful. The Court finds it appropriate under the circumstances to reduce the total sanctions owed by Sinowetski from \$8,090 to \$4,045 payable to Plaintiff in 4 equal monthly payment with the first payment due 30 days from today's date. (See Code Civ. Proc., § 128, subd. (a)(8).)

The motion is DENIED.

An OSC re Sanctions Pursuant to CCP § 177.5 against Yakup Sari and the Sari Law Firm for Failing to Meet and Confer in Good Faith as Ordered is scheduled for 6/16/26 at 9:00 a.m., in Dept. 32.

2. MOTION FOR SANCTIONS

Plaintiff's Motion for OSC Re: Contempt and Sanctions against Mohamed Said (ROA 303) is DENIED.

Plaintiff's Request for Judicial Notice in support of the Motion is GRANTED as records of this Court. (See Evid. Code § 452, subd. (d).)

Plaintiff's Request for Judicial Notice in support of Plaintiff's Response is GRANTED as to Exhibits 1-3, 5, 6, 9-11 as records of this Court and the federal court. (See Evid. Code § 452, subd. (d).) As to Exhibits 4, 7, and 8 is GRANTED only as evidence of their publication/existence, but not as to truth of their contents.

Plaintiff asserts an OSC Re: Contempt and monetary sanctions are warranted because Defendant willfully failed to comply with the Court's 10/15/24 discovery and sanctions order.

Said contends his failure to comply was the result of his unrepresented status. However, unlike Sinowetski, Said was in fact unrepresented until 9/11/25 (See ROA No. 21 [Answer filed by Sai, in pro per] & ROA No. 307 [Substitution of Attorney].) However, being unrepresented is not an excuse. "A self-represented litigant who is not indigent must expect and receive the same treatment as if represented by an attorney-no different, no better, no worse. (*Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811.)

Said also argues he is financially unable to satisfy the sanctions. In his declaration, Said states he is the sole financial provider for two separate households because he and his wife reside separately and Sinowetski is not employed. (Said Decl., ¶¶ 2, 3, 5.)

Said states his employment requires out-of-town travel during the work week and has to pay the costs of lodging transportation, fuel and meals. (Said Decl., ¶ 4.) He pays approximately \$1,682 per month in rent for his own residence and contributes approximately \$3,000 per month toward the household where Sinowetski and the children live, totaling \$4,682 per month before food, insurance, debt service, taxes, or any other fixed cost. (Said Decl., ¶ 5; Decl. Yakup Sari, ¶ 3.) Said states that after all necessary obligations are accounted for, his income is fully consumed and he is operating at a monthly deficit with nominal account balances and no liquid savings. (Said Decl., ¶¶ 6, 7.)

Plaintiff contends Said was criminally convicted and served multiple years in federal prison for absconding with \$3.4M and has not paid the restitution sanction; Said continues to possess such monies; Sinowetski is the continued beneficiary of such in that Said has continued to purchase expensive Rolex watches, Sinowetski purchases expensive jewelry, both drive luxury vehicles and both dine at expensive restaurants; and Said has ancillary income outside his disclosed position. However, Plaintiff has not presented admissible evidence supporting these contentions other than the federal court records showing Said plead guilty to wire fraud and conspiracy to commit money laundering in 2018. The guilty plea alone does not establish Said has the ability to pay the sanctions.

Said has therefore established he lacks the ability to pay and his non-payment was not willful. The Court finds it appropriate under the circumstances to reduce the total sanctions owed by Said from \$12,350 to \$6,175 payable to Plaintiff in 4 equal monthly payment with the first payment due 30 days from today's date. (See Code Civ. Proc., § 128, subd. (a)(8).)

The motion is DENIED.